

FORM No. HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT,  
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

W.P.No.17958/2019

Arshad Ali Qadri Vs. ADJ etc.

| Sr. No. of order/ proceedings | Date of order/ Proceeding | Order with signature of Judge, and that of Parties' counsel, where necessary |
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01.02.2021 Malik M. Tariq Nonari, Advocate for the petitioner.  
Malik Aftab Abbas Khan, Advocate for the respondents.

Through this constitutional petition the petitioner has called in question order and judgment dated 14.02.2019 & 02.08.2019 respectively passed by learned Courts below whereby application filed by respondent No.3 to summon one Saeed Anjum as witness in rebuttal of evidence, has been concurrently allowed.

2. It is contended by learned counsel for the petitioner that in compliance of remand order dated 21.03.2014, respondent No.3 who was defendant in suit could only lead his evidence while appearing as defendant but not in rebuttal after the evidence of the petitioner was recorded, therefore, the impugned order permitting the respondent to produce Saeed Anjum in evidence is not justified.

3. The judgment dated 21.03.2014 passed by learned Additional District Judge whereby matter was remanded back to learned Trial Court shows that while setting aside the impugned judgment and decree dated 21.07.2011 the matter was remanded to the learned Trial Court with a direction to allow cross examination of PWs-1 to 3 recorded on 22.07.2003 and also allowed

the parties to produce evidence in rebuttal in accordance with law and decide the same afresh. Therefore, it cannot be concluded that the allowing of application to produce said Saeed Anjum is beyond the scope of remand order. Even otherwise the Court vide impugned order has permitted respondent No.3 to produce the aforesaid witness in evidence by observing that his production will be beneficial for just decision of the matter. Therefore, merely because the name of the said witness was not mentioned in the list of witnesses, does not bar the Courts from passing an order for summoning of witness for just decision of the matter as many question have been raised relating to register of deed writer. Consequently, it is held that the impugned order and judgment passed by both the Courts below do not suffer from any illegality or jurisdictional defect for this Court to interfere in the same in its constitutional jurisdiction, which order and judgment even otherwise being well warranted and based on sound reasoning are up-held.

4. In view of the above discussion, this petition being devoid of merits is **dismissed**.

**(MUZAMIL AKHTAR SHABIR)**  
**Judge**

*\*Waqar\**